

The Bureaucratic Challenges of Unified Data: Examining Predictive Policing Technology Design Issues Posed by Federal and State U.S. Criminal Legal System Data Sets

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Abstract

A rise in law enforcement and judicial use of predictive policing technologies in the United States has led to questions about the accuracy and validity of the crime data used to train algorithms. In this paper, we introduce preliminary findings from filing public data requests with Departments of Corrections in 50 U.S. states to highlight how using federal data to train predictive policing technologies could pose significant accuracy issues due to cross-state differences in criminal legal system data availability, usability, and comparability. We argue that technologists need to consider how federal data sets combine data that individual states collect. We introduce several avenues for researchers to explore further, including examining how inconsistencies in federal data may affect AI algorithm performance in minority communities.

CCS Concepts

• **Human-centered computing** → **Empirical studies in HCI**; **HCI design and evaluation methods**; • **Computing methodologies** → **Machine learning algorithms**; • **General and reference** → *Reliability*; *Design*; • **Applied computing** → *Law*.

Keywords

predictive policing, criminal recidivism, public sector data, bureaucracy, algorithmic bias

ACM Reference Format:

Amelia Roskin-Fraze^{*} and Christine Denise Head. 2025. The Bureaucratic Challenges of Unified Data: Examining Predictive Policing Technology Design Issues Posed by Federal and State U.S. Criminal Legal System Data Sets. In *Extended Abstracts of the CHI Conference on Human Factors in Computing Systems (CHI EA '25)*, April 26–May 01, 2025, Yokohama, Japan. ACM, New York, NY, USA, 11 pages. <https://doi.org/10.1145/3706599.3720065>

1 Introduction

Recent literature has explored how forecasting models, automated decision-making tools, and other algorithmic technologies have

been used in the public sector. The research shows mixed outcomes. Many technologies promise reduced costs and increased efficiency [20]. Additionally, interoperability within public sector data can help ensure more efficient social service delivery, which can reduce the administrative burden on the consumer [28]. However, research has also shown that algorithmic tools in public sector contexts, such as the criminal legal and child welfare systems, can exacerbate inequalities [12, 41, 43]. In the case of child welfare, for example, the literature shows that algorithmic tools can disproportionately punish Black and Latinx families [14] unless humans intervene to reduce racial disparities [7]. Further, these potentially harmful results can result in a lack of trust among agencies, practitioners, and consumers of public sector services [5], making public sector workers leery of implementation [48]. Finally, the quality of the data used to train tools limits the tools' efficacy [63].

While HCI research has shed much-needed light on how people perceive algorithmic tools [58] and the consequences of using these tools in the public sector [25, 57], studies have overlooked the role of structural and institutional constraints on algorithmic tools and the data that informs their outcomes. For example, bias within data can create feedback loops in predictive policing technologies and create biased outcomes that are difficult to find using quantitative analysis alone [44]. Richardson, Schultz, and Crawford [49] highlight from a legal perspective how using inappropriate data to train algorithmic tools can create flawed and racially-biased results in some predictive models used in the criminal legal system, which HCI researchers have similarly argued [16]. Additionally, differences in federal and state data management methods may affect the accuracy of predictive policing technologies. Previous researchers found that technologists rely heavily on public data sets for algorithm design [10]. Many commonly used data sets on crime that are available to designers of predictive policing technologies, such as the Federal Bureau of Investigation's National Incident-Based Reporting System (NIBRS) data set, combine crime data from several states. Creating a unified data set provides a large sample size from which to train a model, but data across states may not be comparable for a multitude of reasons. Do these larger national data sets represent what they purport to represent in their variable names? Are there differences between states that may affect the accuracy of models that use federal data sets to make recommendations?

In this paper, we raise the issue of using national data sets that combine state data, especially for predictive policing technologies. Analyzing the results of data requests we filed with 50 U.S. state Departments of Corrections for incarceration data, we found issues

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CHI EA '25, Yokohama, Japan

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ACM ISBN 979-8-4007-1395-8/25/04

<https://doi.org/10.1145/3706599.3720065>

with data availability, usability, and comparability persist between states that are then combined into national data sets like the NIBRS. We therefore argue that designers of automated decision-making technologies who use federal data must consider how the government compiled the data when selecting data sets on which to train new models.

2 Previous Literature

2.1 Bureaucratic Challenges in Maintaining and Using Government Data

One challenge in maintaining and using government data is the role of bureaucracy — the administrative system that governs large institutions like the public sector — in data collection and maintenance. Exploring the role of public sector bureaucracy at the institutional and micro-level is important for understanding the full context of the practices that shape and constrain government data sets. As Lee and Dourish [32] note, in observing “data relations” between community-based organizations and local governments, the bureaucracies surrounding data often resist change. This is because entrenched and overlapping systems of power constrain actors in local government. Similarly, public sector information systems that cross scales (e.g. from local to state) are common in the public sector [31], highlighting how structures within the public sector can further limit changes in data collection practices.

At the micro-level, Lipsky’s concept of ‘street bureaucrats’ [36] describes how public employees interact with data. Like other functions of the public sector, workers’ interpretations of policies and mandates inform how they collect and manage government data. In this way, measurement and its related activities become a politicized act, shaped by the politics, infrastructures, and people involved in the process [47]. Furthermore, the number of public sector workers adequately trained to work with data has not kept up with increasing needs [27]. In the private sector, too, researchers have noted how tension about the meaning and potential use of data can cause conflict in the workplace [45].

On the part of designers and HCI researchers, the above aspects of technology within the context of the public sector have led to calls for a more productive understanding of systems-people-policy interactions [65]. When considering the design of “public things,” we must reflect on how design can “express matters of concern” or make issues and their consequences legible to the public [11]. In the context of public sector data sets like the NIBRS, design can further support the status quo and hinder discourse. In this way, the literature shows that technologists can build and design technologies to support the deployment of potentially harmful policy [56]. Put more broadly, technology is socially constructed, reflecting larger power structures in a larger social context [3].

2.2 Algorithmic and Predictive Technologies in the Public Sector

Algorithmic technologies in the public sector are studied extensively in HCI literature. These technologies can help facilitate sorting through cases to reduce strain on public sector workers [25], assist in service delivery [57], or help predict future behavior [68]. Predictive policing technologies, for example, use algorithms to try

to anticipate geographical crime occurrence [18, 62] and recidivism risk for specific offenders [54, 55, 61]. These technologies aim to aid in decision-making at all levels of the criminal legal system to reduce future crime and improve efficiency [64], such as helping judges determine punishments and pre-trial detention for accused or convicted offenders. Additionally, algorithmic crime mapping technologies use past crime data to advise law enforcement officers about geographical “hotspots” where future crime is supposedly likely to occur [19]. Other scholars argue that case workers and other direct service providers using automated decision-making tools and risk assessments more accurately predict recidivism risk [17].

However, predictive technologies in the public sector in particular have come under scrutiny for their inconsistencies. Studies of predictive algorithms that child welfare agencies use have found these tools are unable to accurately predict case outcomes [40], have major discrepancies with more detailed human evaluations [52], and lead to unnecessary increased surveillance and other street-level harms [15, 50, 51]. Additionally, limitations and errors within data can create feedback loops that reinforce existing law enforcement practice patterns [21, 44]. Sometimes these errors mean that technology can produce outcomes counterintuitive to its purpose, creating tension for stakeholders building, using, or being subjected to the technology [7]. We can see an example of this tension in COMPAS. COMPAS, built by Northpointe, is one of the most popular risk assessment tools that judges in the U.S. use to evaluate an accused offender’s risk of committing a crime in the future [4, 26]. The user guide for COMPAS notes the strong relationship between COMPAS risk score and future arrest probability [42]. However, despite designers’ stated intentions of predicting recidivism risk in an unbiased manner, scholars have found significant gender and racial bias in the COMPAS’s assessment of recidivism risk [13, 29], and COMPAS’s risk assessments may have a causal effect on future arrest risk.

COMPAS is not an exception in the field, but merely an example of the biases reported in all predictive policing technologies. Community advocates examining racial bias in the criminal legal system argue that broadly, these technologies exacerbate racial and other biases in policing and judicial decision-making [60, 68]. Another group of scholars evaluating RisCanvi, another recidivism prediction tool, found bias on the basis of nationality and age [23]. Other research on these technologies globally has found biases in how these technologies identify potential future crime hotspots based on racial and other biases in past policing patterns [37] or in victim reporting patterns [1]. Similar to biases scholars found when humans make recidivism risk predictions [38], some automated tools make higher risk assessments about Black defendants than white defendants [16, 53].

3 Methods

To examine inter-state differences in criminal legal system data availability, usability, and comparability, we tracked state responses to data requests related to an ongoing Institutional Review Board-approved study by one of the co-authors examining sex crime demographics in the criminal legal system. The co-author sent

Public Records Act (PRA)/Freedom of Information Act (FOIA) requests to the Department of Corrections or equivalent in every U.S. state in July 2023. The request asked for data on prison entry from 2010 to early 2023 so the co-author could create crosstabs for sex, race/ethnicity, and sex crimes vs. non-sex crimes. The co-authored followed up on this request in June 2024 with a request for the same data with different phrasing sent to states that originally denied or did not respond to the first request or who provided the original data in a format that was more difficult to use. (See Appendix B)

The data provided from all states except Vermont (which provided data only after IRB approval) and all the email exchanges the co-author had with states are themselves public records, and therefore IRB-exempt. Additionally, state denials of public records requests serve as the basis for any legal appeals of the denials, meaning denials are explicitly meant to be publicized, as the authors of denials emphasize when they discuss legal appeal options. That said, we opted to redact any email addresses and names of those we communicated with from provided materials since the specific identity of a person responding to a data request is not relevant to our study.

After obtaining responses and data from states, we tracked several characteristics of state responses to data requests that could affect the accuracy of predictive policing technologies using compilations of state criminal legal system data — such as national data sets like the NIBRS. We focused on three characteristics of state data that could affect the accuracy of these national compilation data sets:

- **Availability:** The accuracy of predictive policing technology — and any AI technology — relies heavily upon the data that designers use to train it [21]. Accordingly, we were interested in which states easily provide designers and researchers with access to state-level data related to the criminal legal system that can be used to train predictive policing technology. Did the state provide data at any point (and if not, why not)? Was the data freely visible online? Did the data require IRB approval (creating an additional barrier for technology designers)? Was the data only provided at a financial charge?
- **Usability:** Was the file format manipulatable? Was the data sortable (able to be moved around for research purposes), or not sortable (summary statistics in a clump, rather than individual data points)? (While the co-author’s data original request in 2023 said cross-tabs would be acceptable if a CSV document was not possible, the second request in 2024, which was also sent to states that provided non-sortable data in 2023, asked specifically for a sortable CSV format — it is on the basis of responses to the second request that we categorized states.)
- **Comparability:** Given the wealth of scholarship demonstrating concerns about predictive policing technologies having significant consequences on racial and ethnic minority communities [49], we were particularly interested in looking at comparability between how states defined race and ethnicity, which affects the accuracy of national-level data sets that combine state data. To evaluate this, we looked more specifically at how states tracked Hispanic people given the government’s historical difficulties categorizing Hispanic

identity in the Census and other data sets [33, 59]. Did the state in question track ethnicity in any form? Did the state track “Hispanic” as a race?

We created tables that tracked states within these three areas of interest. We then explored potential implications of these findings and important areas for future research that could use these findings to evaluate bias in predictive policing technologies.

4 Findings

4.1 Availability

Data availability varied drastically by state. Three states had the requested data available for free online. Thirty other states provided data responsive to the co-author’s data request. States that did not provide data had several justifications for failing to do so: the co-author being “out of state” (exempting the state from legal requirements to turn over data based on their individual laws around information requests), the data (including basic demographic data on the sex of incarcerated people) “not existing,” or — most notably — failing to issue a formal response at all. This could take the form of a state not responding to emails, or sending “we are still looking” emails every couple months in perpetuity. Some states that provided data only did so after the co-author made repeated follow-up inquiries, with one providing data over a year after the initial data request. Two barriers to obtaining data were IRB requirements and financial charge. Three states requested the co-author file IRB paperwork, of which one ultimately provided data, one denied the data request, and one request remains in-progress. Nine states charged the co-author money to obtain the requested data, ranging from \$75 to over \$2,000. (See Appendix A for a detailed breakdown by state.)

4.2 Usability

States provided the requested data in a variety of formats — not just in file type, but in sortability of data points. Three states provided data in PDF format, three through websites, and the rest in spreadsheet files (Excel or CSV). In total, eight states did not provide data in a sortable format — the data was provided as a list of how many people incarcerated fit within a certain group, or provided as cross-tabs that limited possible analysis to a maximum of three variables.

It is notable that even the most available websites were often incompatible with technological innovations designed to streamline data processes. For example, the data websites we observed were resistant to website scraping APIs that could pull data from the web page. Barriers to web scraping included the use of complicated CAPTCHAs, formatting that led to data being mislabeled when collected through web scraping APIs, or websites having terms of services that explicitly banned the practice.

4.3 Comparability

Our examination of comparability between race and ethnicity across state data revealed states meant very different things by identity categories that shared identical names. States did not provide definitions of race or ethnicity, only variables with those names responsive to the data request filed. As a result, we could only see

differences in the resulting categories within race and ethnicity variables, not the justifications for states sorting categorizing identities the way they chose to categorize them.

States were inconsistent about whether “Hispanic” was a race or ethnicity. Fourteen states categorized “Hispanic” as a race, ten categorized “Hispanic” as an ethnicity, three had “Hispanic” as an option for both a race and an ethnicity, and six did not count Hispanic people at all. As a result, someone who would be “Hispanic” in one state could appear “white” or another race in another state, both a race and “Hispanic” in a third state, or be labeled as another identity entirely (e.g., California has many identity options that can fall under the umbrella of “Hispanic,” such as Guatemalan or Chilean). States also had different options for race (and, if applicable, ethnicity) than one another for identities beyond “Hispanic,” leading to people with shared racial or ethnic identities being put in different categories based on state. For example, someone who identified as Middle Eastern could be counted as “white” in some states, “Middle Eastern” in some states, “Asian” in some states, and “Other” in some states. Some labels were also ambiguous. North Carolina had a category for “Indian,” but their website did not clarify if this referred to people from India or was an antiquated way of describing people who were Indigenous. It was also unclear if incarcerated people who self-identified were provided with clarity on the term’s meaning.

5 Discussion

5.1 Implications for Technology Design

The inconsistencies in how states categorize Hispanic people — and provide options for race and ethnicity generally — leave race and ethnicity data in national-level data sets that combine state data opaque. Yet, these variables are not irrelevant for technologies that rely upon matching characteristics of a current defendant with those of past defendants to attempt to predict criminal behavior [17]. When an algorithm trained with a federal data set that compiles state data attempts to analyze past behavior patterns for Hispanic defendants, this algorithm can only make inferences based on the fraction of Hispanic people in the criminal legal system who are labeled “Hispanic.” A hypothetical Hispanic defendant could thus be detained longer based on an algorithm’s recommendation formed from analyzing Hispanic defendants in a small number of U.S. states. The potential issues that automated decision-making tools trained on federal data pose for members of minority communities are particularly concerning given the difficulty of contesting outputs of AI technology in court [24, 46].

Additionally, availability could pose a major issue for technologists. Scholars have noted that designers of automated decision-making technology in the medical field tend to rely more on public datasets [10], which we found rare for states when it came to data from their departments of corrections. Of the three states that provided data online, two of them provided it in a usable format. This would leave designers with the choice of using criminal legal system data from two states or turning to public federal data sets like the NIBRS. Missing state-level data raises the question of how automated decision-making tools may be affected if trained on these federal data sets. As Bak et al. [2] note, developing AI technologies has limited value if there is insufficient or inaccurate data on which

to train those technologies. Unavailable state-level data incentivizes technologists to use federal data sets that we argue are inconsistent and problematic in their released forms.

Finally, differences in usability we found between how states provide data could also pose significant design challenges. While states that provided spreadsheets with sortable data points could allow for an automated decision-making tool to analyze several things about each data point (race, ethnicity, age, sex, crime, timing of incident, and other characteristics), in states that limit their data disclosures to non-sortable formats, an automated decision-making tool could only access a fraction of that information (e.g., only information on how many people of a certain sex identify as a certain race). This format could leave out potentially vital information. The accuracy of crime mapping technology in particular relies upon a model’s ability to assess detailed spatial information of original data [67], which is generally not accessible from states that provide data in a non-sortable format. This usability constraint inhibits the ability of automated decision-making technology focused on crime mapping to effectively assess geographical risk.

5.2 Implications for Data Construction and State Governance

Though there have been considerations of policy and bureaucracy in the development of tools and public sector technologies, similar recommendations can be applied when thinking about how we use public sector data.

Previous HCI literature has explored how successful design and use of technology in the public sector requires a re-centering of larger structural considerations, such as policy, than designers and scholars traditionally emphasize. As more technologies proliferate in the public sector, it becomes clear that policy and design are interdependent — the activities of one require the other for implementation [22]. Indeed, inherent in any HCI research and design in the public sector is the need to discuss policy development. In our data, we see that inconsistencies in state laws, discretion in variable definitions across state policies, and technological differences in state-level information systems lead to problematic data on a federal level. The scale-crossing discussed by Le Dantec and Edwards [31] from state to national-level data sets compromises appropriate applications of criminal legal system data in automated decision-making technologies by creating inherent variability that affects the generalizability of federal criminal legal system data.

Additionally, a major challenge remains transparency in data policy and decision-making practices. Without transparency in decision-making and clarity in definitions among bureaucratic institutions, federal-level criminal legal system data can be a flawed building block for automated decision-making algorithms. Definitions for race and ethnicity were not provided by states or necessarily by the federal government to states, which gave states leeway to construct these categories in arbitrary ways.

5.3 Ethical Implications of Unified Data Sets and Integrated Data Systems

While we argue compiling state-level data sets is problematic, the implications of creating a national-level dataset can be logistically and ethically dubious generally. One example is South Carolina’s

integrated data system. Though some touted the system for its effort to support higher quality education delivery [35] and the development of wraparound health services that more fully addressed the social determinants of health for children in rural areas [6], there are several problems associated with these sorts of digital undertakings. For example, cross-system data integration makes the data more vulnerable to exposure and creates legal challenges around data privacy [9]. Further, the administrative burden of maintaining these systems are vast — requiring investment far beyond what most states can afford [8]. Beyond these legal and bureaucratic challenges, scholars have found that unifying and integrating data sets can further compound biases in data that disproportionately impact minority communities [66].

These conditions highlight the need for caution, if not outright avoidance, of predictive policing and related automated decision-making technologies in all forms. Not only are they likely impossible to implement given the United States' current technological practices, but reinforce existing inequalities [39, 68] and create ethical concerns related to privacy and autonomy [34]. Our findings reinforce the argument that we should divest from predictive policing technologies, not fortify already problematic structures and practices.

5.4 Limitations and Areas for Future Work

Since this paper is presenting preliminary findings on the accuracy and accessibility of state and federal-level criminal legal system data, further follow-up work is needed in order to fully understand how these findings affect specific predictive policing technologies and analyze larger meanings for state governance in data construction. We encourage future studies that explore how specific automated decision-making models perform when utilizing different criminal legal system data sets, with special attention to whether federal data sets that compile data that states collect exacerbate racial and ethnic bias in crime mapping and recidivism predictions, relative to models that use state-level data only.

Another critical space for future work is related to standardization. Inherent in multidisciplinary work is navigating different understandings of similar concepts. In particular, our data shows a great need for states whose data sets are combined to have shared definitions around race and ethnicity. The socio-historical context of race and ethnicity in the U.S. makes having consistent definitions challenging, but designers create many technologies with the assumption that definitions are consistent. Though HCI professionals may not be able to enforce standardization within the public sector, future research must explore how these data quality issues affect technological innovations.

Finally, the way state actors make decisions in response to data requests also merits further study because of its implications for future design work related to big government data. For example, the co-authors have a paper in progress examining the role of state-level bureaucrats responding to data requests in the construction of big data, and how state bureaucracy affects the usability of resulting data sets.

6 Conclusion

This paper highlights the urgent need for technologists to pay attention to how the data used to train automated decision-making technologies is collected and compiled. Additionally, we highlight a fatal flaw in some of the data sets that underlie predictive policing technologies used in the criminal legal system. Our findings demonstrate that in the U.S., there are significant differences between states in criminal legal system data availability, usability, and comparability. These differences could affect the accuracy of technologies trained on federal data sets that compile data from individual states. We therefore advocate for designers of automated decision-making technologies to use state or municipal-level data sets to train models to try to minimize inaccuracies and biases. We also urge law enforcement and courts to cease using algorithmic crime mapping and recidivism risk technologies. Especially when it comes to race and ethnicity, cross-state differences in definitions obfuscate data on minority populations involved in the criminal legal system. We encourage researchers using federal criminal legal system data to examine if their study findings hold true when using state- or municipal-level data instead.

In addition to implications for the design related to public sector information systems, this study also shows the need for more enforcement of consistent policy and practice. Though states and the federal government have made policies to address data quality, a state or government actually enforcing these policies remains a challenge. On a structural level, the public sector has struggled to implement policies that could bolster data compatibility and do not implement many legal requirements [30]. Achieving this goal will require collaboration between states with different notions of success and access to resources. With this in mind, designers can work collaboratively with public sector employees to better utilize existing administrative data for future technological innovation.

Acknowledgments

We extend our deepest gratitude to the peer reviewers, Dr. Daniel Epstein, and Dr. Uriel Serrano for their thoughtful feedback. We also want to thank CI's Steckler Center for Responsible, Ethical, and Accessible Technology (CREATE) and the National Science Foundation for helping fund this research.

This material is based upon work supported by the National Science Foundation (SBE #2016661) and the National Science Foundation Graduate Research Fellowship Program under Grant No. 1839285. Any opinions, findings, and conclusions or recommendations expressed in this material are those of the authors and do not necessarily reflect the views of the National Science Foundation.

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A Tables

Table 1: Availability

State	Data Shared	Denial Reason	Online	IRB	Charge
Alabama	No	Out of state	No	N/A	N/A
Alaska	Yes	N/A	No	No	Yes
Arizona	No	Does not exist	No	N/A	N/A
Arkansas	No	No response	No	N/A	N/A
California	Yes	N/A	No	No	Yes
Colorado	Yes	N/A	No	No	No
Connecticut	Yes	N/A	No	No	Yes
Delaware	No	Does not exist	No	N/A	N/A
Florida	Yes	N/A	No	No	Yes
Georgia	Yes	N/A	No	No	Yes
Hawaii	No	No response	No	N/A	N/A
Idaho	Yes	N/A	No	No	No
Illinois	No	Other	No	No	N/A
Indiana	In progress	In progress	No	Yes	Unknown
Iowa	Yes	N/A	Yes	No	No
Kansas	Yes	N/A	No	No	Yes
Kentucky	No	Does not exist	No	No	N/A
Louisiana	No	No response	No	N/A	N/A
Maine	Yes	N/A	No	No	No
Maryland	Yes	N/A	No	No	No
Massachusetts	Yes	N/A	No	No	No
Michigan	Yes	N/A	No	No	No
Minnesota	Yes	N/A	No	No	Yes
Mississippi	Yes	N/A	No	No	Yes
Missouri	No	No response	No	N/A	N/A
Montana	Yes	N/A	No	No	No
Nebraska	Yes	N/A	Yes	No	No
Nevada	Yes	N/A	No	No	No
New Hampshire	Yes	N/A	No	No	No
New Jersey	No	Other	No	No	N/A
New Mexico	Yes	N/A	No	No	No
New York	No	Delay	No	N/A	N/A
North Carolina	Yes	N/A	Yes	No	No
North Dakota	Yes	N/A	No	No	No
Ohio	No	Other	No	Yes	N/A
Oklahoma	Yes	N/A	No	No	No
Oregon	Yes	N/A	No	No	No
Pennsylvania	Yes	N/A	No	No	No
Rhode Island	Yes	N/A	No	No	Yes
South Carolina	Yes	N/A	No	No	No
South Dakota	No	Does not exist	No	N/A	N/A
Tennessee	No	DNE/OOS	No	N/A	N/A
Texas	Yes	N/A	No	No	No
Utah	No	Does not exist	No	N/A	N/A
Vermont	Yes	N/A	No	Yes	No
Virginia	No	Out of state	No	N/A	N/A
Washington	Yes	N/A	No	No	No
West Virginia	Yes	N/A	No	No	No
Wisconsin	Yes	N/A	No	No	No
Wyoming	Yes	N/A	No	No	No

Table 2: Usability

State	File Format	Sortable Data Points
Alaska	Spreadsheet	Yes
California	PDF	No
Colorado	PDF	No
Connecticut	Spreadsheet	Yes
Florida	Spreadsheet	Yes
Georgia	Spreadsheet	Yes
Idaho	Spreadsheet	Yes
Iowa	Internet	Yes
Kansas	Spreadsheet	No
Maine	Spreadsheet	No
Maryland	Spreadsheet	Yes
Massachusetts	Spreadsheet	Yes
Michigan	Spreadsheet	Yes
Minnesota	Spreadsheet	Yes
Mississippi	Spreadsheet	No
Montana	Spreadsheet	Yes
Nebraska	Internet	Yes
Nevada	Spreadsheet	Yes
New Hampshire	Spreadsheet	Yes
New Mexico	Spreadsheet	Yes
North Carolina	Internet	No
North Dakota	Spreadsheet	Yes
Oklahoma	Spreadsheet	Yes
Oregon	Spreadsheet	Yes
Pennsylvania	Spreadsheet	Yes
Rhode Island	Spreadsheet	No
South Carolina	PDF	No
Texas	Spreadsheet	Yes
Vermont	Spreadsheet	Yes
Washington	Spreadsheet	Yes
West Virginia	Spreadsheet	Yes
Wisconsin	Spreadsheet	Yes
Wyoming	Spreadsheet	Yes

Table 3: Comparability

State	Hispanic Race	Hispanic Ethnicity
Alaska	Yes	No
California	No	Yes
Colorado	Yes	No
Connecticut	Yes	No
Florida	Yes	Yes
Georgia	Yes	No
Idaho	No	Yes
Iowa	Yes	No
Kansas	No	Yes
Maine	No	No
Maryland	No	No
Massachusetts	Yes	No
Michigan	No	No
Minnesota	No	Yes

Continued on next page

Table 3 – continued from previous page

State	Hispanic Race	Hispanic Ethnicity
Mississippi	Yes	Yes
Montana	No	Yes
Nebraska	Yes	No
Nevada	No	Yes
New Hampshire	Yes	No
New Mexico	Yes	No
North Carolina	No	Yes
North Dakota	Yes	No
Oklahoma	Yes	No
Oregon	Yes	No
Pennsylvania	No	No
Rhode Island	Yes	No
South Carolina	No	No
Texas	Yes	Yes
Vermont	No	No
Washington	No	Yes
West Virginia	No	Yes
Wisconsin	No	Yes
Wyoming	Yes	No

B Outreach

B.1 First Email - 2023

Dear [DEPARTMENT],

I am a [JOB TITLE] in [DISCIPLINE] researching prison admissions for sex crimes in different states. I have attached a request for public data via PDF. As I mention in the PDF, if a larger data set cannot be provided/you would prefer to provide specific data crosstabs, this is the list of the specific crosstabs I am seeking:

- New Felon Admissions Between January 1, 2010 and March 31, 2023 By Controlling Offense Group and Age Group;
- New Felon Admissions Between January 1, 2010 and March 31, 2023 By Controlling Offense Group and Race;
- New Felon Admissions Between January 1, 2010 and March 31, 2023 By Controlling Offense Group and Ethnicity;
- New Felon Admissions Between January 1, 2010 and March 31, 2023 By Controlling Offense Group and Sex;
- New Felon Admissions Between January 1, 2010 and March 31, 2023 By Controlling Offense Group and Education Level Group;
- New Felon Admissions Between January 1, 2010 and March 31, 2023 By Controlling Offense Group, Race and Ethnicity;
- New Felon Admissions Between January 1, 2010 and March 31, 2023 By Race, Ethnicity and Sex;
- New Felon Admissions Between January 1, 2010 and March 31, 2023 By Race, Ethnicity and Age Group;
- New Felon Admissions Between January 1, 2010 and March 31, 2023 By Age Group and Sex;
- New Felon Admissions Between January 1, 2010 and March 31, 2023 By Race, Ethnicity, Sex, and All Sex Controlling Offenses;

- New Felon Admissions Between January 1, 2010 and March 31, 2023 By Race, Ethnicity and Sex, All Non-Sex Controlling Offenses;
- New Felon Admissions Between January 1, 2010 and March 31, 2023 By Race, Ethnicity and Age Group Sex Controlling Offenses;
- New Felon Admissions Between January 1, 2010 and March 31, 2023 By Race, Ethnicity and Age Group All Non-Sex Controlling Offenses;
- New Felon Admissions Between January 1, 2010 and March 31, 2023 By Age Group and Sex Sex Controlling Offenses;
- New Felon Admissions Between January 1, 2010 and March 31, 2023 By Age Group and Sex All Non-Sex Controlling Offenses

Thank you so much for your time!

Best,

[CO-AUTHOR INFORMATION]

B.2 Second Email - 2024

Dear [DEPARTMENT],

Pursuant to the Freedom of Information Act, I am reaching out to request data in .CSV or Excel format on all those who entered [STATE] prisons from January 1, 2010 to December 31, 2022 (inclusive) with the following variables:

- (1) Sex/gender (whatever term is used by [DEPARTMENT])
- (2) Race
- (3) Ethnicity (only if tracked)
- (4) Offense or offense type (sex offense vs. non-sex offense)

I do not need any identifying information, only the demographics described above.

Best,

[CO-AUTHOR INFORMATION]